

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 34, RICHMOND
JUDICIAL OFFICER: LEONARD E MARQUEZ
HEARING DATE: 11/25/2025

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN DEPARTMENT
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The tentative ruling will become the ruling of the Court unless by 4:00PM of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 34 (Dept34@contracosta.courts.ca.gov) to request argument and must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00PM of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED
THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER
ABOVE.
Zoom link-

[https://contracosta-courts-
ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdlhIdz09](https://contracosta-courts-ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdlhIdz09)

Meeting ID: 161 108 5023
Passcode: 869677

Law & Motion

1. 9:00 AM CASE NUMBER: L21-05922

CASE NAME: LIBERTY MUTUAL FIRE INSURANCE COMPANY VS. RACHEL SMITH

***HEARING ON MOTION IN RE: MOTION TO ENFORCE SETTLEMENT AND ENTER JUDGMENT FILE BY
PLN ON 08/20/2025**

FILED BY: LIBERTY MUTUAL FIRE INSURANCE COMPANY,

TENTATIVE RULING:

Plaintiff Liberty Mutual Fire Insurance Company (“Plaintiff”) filed a Motion to Enforce Settlement Agreement and Enter Judgment on August 20, 2025 (“Motion to Enter Stipulated Judgment after Default”). The Motion to Enter Stipulated Judgment after Default was set for hearing on November 25, 2025.

Background

The parties entered into that certain settlement agreement on or about October 26, 2022 (the “Settlement Agreement”), the terms of which included payment by the defendant Rachel Smith (“Defendant”) in the amount of \$6,823.54 to be paid in accordance with the terms thereof (the “Payment Terms and Conditions”). See Declaration of Brian P. Tapper filed August 20, 2025 as part of Motion to Enter Stipulated Judgment after Default (“Supporting Declaration”), ¶2 and **Exhibit A** thereto. As part of the Settlement Agreement, the parties entered into a stipulation for entry of judgment in the event of a default, including interest and court costs. *Id.*, **Exhibit A**, ¶¶1-8.

Defendant defaulted on the Payment Terms and Conditions. See Supporting Declaration, ¶3. No notice or opportunity to cure is required under Settlement Agreement. Settlement Agreement, ¶5-7. After credit for amounts paid, there remains \$6,123.54 principal due and owing, plus \$1,947.79 prejudgment interest at the rate of 10% per annum and costs of \$225.00. See Supporting Declaration, ¶¶3-5.

Analysis

Defendant was duly served with the motion. The motion is unopposed.

Disposition

The Court finds and orders as follows:

1. The Court finds that Defendant was duly served with the motion.
2. The Court finds that Defendant is in default of the Settlement Agreement.
3. The Motion to Enter Stipulated Judgment after Default is GRANTED. Plaintiff shall have judgment against Defendant in the principal amount of \$8,071.33, plus costs of \$225.00, for a total judgment of \$8,296.33.
4. Plaintiff’s submitted form of order and/or money judgment against Defendant will be entered by the Court. Any prior dismissal entered herein against the Defendant is hereby set aside in connection with entry of such judgment.